Understanding Canadian law

Grade 11 · Answer Sheet B

Name: _____

Date: _____

Part 1

1. **a) retain and instruct a lawyer without delay, and to be told of that right** — Section 10(b) of the Charter gives a person who is arrested the right to...
2. **c) plaintiff** — In a civil case, the person who sues is called the...
3. **b) Everyone, including the government, must follow the law** — What does the rule of law mean?
4. **c) A lawyer's signature** — Which of these is NOT needed for a valid contract?
5. **b) Criminal law** — Under section 91 of the Constitution Act, 1867, which power belongs to Parliament?
6. **b) A guilty mind, such as intent** — What does mens rea mean?

Part 2

3 — Parliament passes the first Criminal Code (1892)

5 — R. v. Gladue: sentencing and Indigenous offenders (1999)

1 — England's Magna Carta limits the king's power (1215)

2 — The Quebec Act keeps French civil law in Quebec (1774)

4 — The Canadian Bill of Rights is passed (1960)

Part 3

Explain the rule of law and why it matters, using one example from Canadian law.

A good answer mentions: No one, including governments and officials, is above the law; laws are public and applied equally; government actions need legal authority; courts are independent and can review what governments do. Example: Roncarelli v. Duplessis (1959), where a premier was held liable for cancelling a liquor licence without legal authority; or courts striking down laws that break the Charter.

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